

Mahboob Ahmad v. Electricity Corp. Ltd.

High Court of Judicature at Allahabad · Division Bench · 5 February 2016 · Writ-C No. 4004 of 2016 · Writ-C No. 4004 of 2016 · **Writ petition dismissed; recovery after Section 126 assessment upheld.**

HEADNOTE

A recovery notice under the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, issued after a Section 126 assessment and non-deposit, is not liable to be quashed in writ. The consumer may still question the assessment before the competent authority under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

An FIR dated 15 July 2014 (Case Crime No. 335 of 2014) was lodged against Mahboob Ahmad at Police Station Chandpur, District Bijnor, under Section 135 of the Electricity Act, 2003. Dues were then quantified by assessment under Section 126. A recovery notice dated 14 October 2015 followed under the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958. On non-payment, recovery was initiated. The petitioner sought to quash that notice.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

recovery after s.126 assessment

HOLDING

Once dues have been quantified under Section 126 and the consumer has not deposited the assessed amount, recovery under the 1958 Act is not infirm and a writ to quash the recovery notice will not lie. The validity of the assessment may still be questioned before the competent authority under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A recovery notice under the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, issued after a Section 126 assessment and non-deposit, is not liable to be quashed in writ. The consumer may still question the assessment before the competent authority under the Electricity Act, 2003 read with the U.P.. ¶ 1

opportunity-before-final-assessment A recovery notice under the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, issued after a Section 126 assessment and non-deposit, is not liable to be quashed in writ. The consumer may still question the assessment before the competent authority under the Electricity Act, 2003 read with the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE SECTION 126 ASSESSMENT

Left open to challenge before the competent authority under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. ¶ 1